

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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LUIS SIERRA,

Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. NELSON NIN (SHIELD #15130)**
Defendant.

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

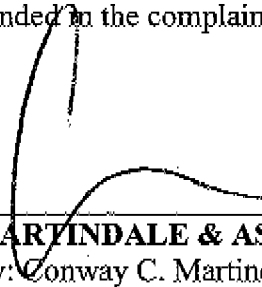
The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 4, 2018



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

P.O. NELSON NIN (SHEILD # 15130)

40th PRECINCT

257 Alexander Avenue

Bronx, NY 10454

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****LUIS SIERRA****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
P.O. NELSON NIN (SHIELD #15130)****Defendant.**

Plaintiff LUIS SIERRA, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (referred to hereinafter as "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (referred to hereinafter as "NYPD") officers mentioned herein, including P.O. Nelson Nin (referred to hereinafter as "NIN"), were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff LUIS SIERRA (referred to hereinafter as "SIERRA") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 6:05am on September 13, 2017, inside of 647 Cauldwell Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. On the morning of September 13, 2017, SIERRA was visiting his girlfriend, Ashley Gonzalez, at her apartment located at 647 Cauldwell Avenue, Apt #2 in Bronx County.
10. SIERRA and his girlfriend were in the apartment at all times relevant herein.
11. Also inside the apartment at the above referenced time were Nilsa Rodriguez (the mother of Ashley Gonzalez and leaser of the apartment) and Dwayne Allen, a friend of Ms. Rodriguez.
12. At approximately 6:05am that morning, NYPD officers of the NARCB BX and 40th Precinct, including NIN, entered the apartment claiming they had a warrant to search the premises.
13. SIERRA was asleep inside his girlfriend's bedroom when the NYPD officers, including NIN, entered the apartment.
14. Upon entering the bedroom, SIERRA and Ms. Gonzalez were brought to the living room while the NYPD officers searched the premises.
15. NYPD officers alleged to have found marijuana throughout the apartment and began to arrest Mr. Sierra.
16. SIERRA attempted to inform the NYPD officers that he did not live at the apartment and knew nothing of the allege marijuana found inside.
17. SIERRA also had New York State issued identification on his person reflecting his actual address of 5360 W 228th Street, Bronx, NY 10463.
18. Nonetheless, there, NYPD officers, including NIN, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully

and unlawfully handcuffed and arrested SIERRA and brought him to the 40th Precinct and placed in a holding cell.

19. After about 5 hours of being held in a holding cell, SIERRA was brought to central booking and placed inside another cell.
20. SIERRA remained in a holding cell inside central booking until he was arraigned on felony charges of Criminal Possession of Marijuana in the 3rd Degree, where he was released upon supervisory release.
21. SIERRA made only one subsequent court appearance, on October 27, 2017, and all charges were dismissed.
22. Due to the aforementioned events, SIERRA suffered psychological and emotional distress.

FIRST CAUSE OF ACTION: FALSE ARREST

23. Paragraphs 8-22 are incorporated by reference as fully set forth herein
24. NIN arrested SIERRA intentionally, and SIERRA at all times was aware she was being arrested and did not consent to being arrested.
25. As a result of being arrested by NIN and the NYPD officers, SIERRA suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. The officers who arrested the Plaintiff, as described in paragraphs 8-22, intended to confine him. SIERRA was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

28. Paragraphs 1-27 are incorporated by reference as though fully set forth herein.

29. In arresting SIERRA as described in paragraphs 8-22, the arresting NYPD officers, including NIN, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

30. In arresting SIERRA as described in paragraphs 8-22, NIN, and the other arresting NYPD officers sought either a detriment to SIERRA or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.

31. As a result of Defendants' abuse of process, SIERRA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

32. Paragraphs 1-31 are incorporated by reference as though fully set forth herein.

33. In arresting SIERRA as described in paragraphs 8-22, the arresting NYPD officers acted with malice and without probable cause.

34. As a result of being maliciously prosecuted by NIN and the arresting NYPD officers, SIERRA sustained multiple injuries, including loss of liberty, emotional

distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.
36. Upon information and belief, the officers who illegally arrested SIERRA were at all times relevant duly appointed and acting officers of the City of New York Police Department.
37. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
38. SIERRA is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
39. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
40. On or about September 13, 2017, as described in paragraphs 8-22, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched, seized, and grabbed the Plaintiff's person, without a court authorized arrest warrant. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

41. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:

- (a) Freedom from illegal search and seizure
- (b) Freedom from false arrest,
- (c) Freedom from malicious prosecution,

42. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

43. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

SIXTH CAUSE OF ACTION: NEGLIGENCE

44. Paragraphs 1-43 are incorporated by reference as though fully set forth herein.

45. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, and malicious prosecution, were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.

46. As a result of the negligence by Defendant CITY, SIERRA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

47. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.
48. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
49. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as SIERRA unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.
50. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
51. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING

52. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.

53. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff LUIS SIERRA demands judgment against the Defendant in the sum of \$1,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

October 4, 2018

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II

Attorneys for Plaintiff

380 Lexington Avenue, 17th Floor

New York, NY 10168

(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

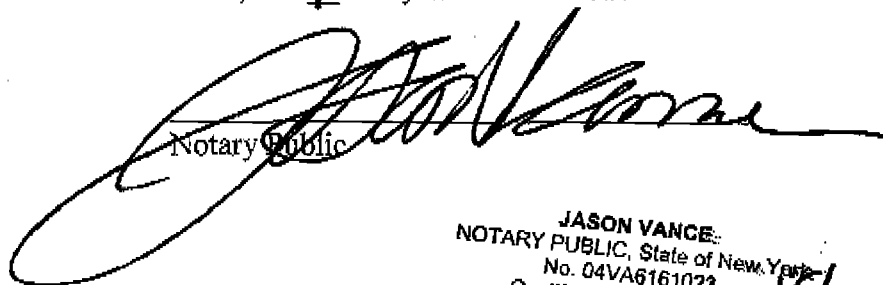
That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
October 4, 2018


LUIS SIERRA

Subscribed and sworn to before me, this 4th day of October 2018


Notary Public

JASON VANCE:
NOTARY PUBLIC, State of New York
No. 04VA6161023
Qualified in Bronx County
Commission Expires Feb. 8, 2019

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LUIS SIERRA

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Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY. 10168
(212) 405-2233

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

P.O. NELSON NIN (SHEILD # 15130)
40th PRECINCT
257 Alexander Avenue
Bronx, NY 10454